

HISTORY OF THE JUVENILE DEATH PENALTY

KEY EVENTS IN THE UNITED STATES

July 19, 1988 More than **37 years ago**

1642: First documented execution for a juvenile crime in the United States. Thomas Graunger, 16, was hanged in Plymouth Colony for having sexual intercourse with a cow and a horse.

1885 James Arcene, a Cherokee Indian, was hanged in Arkansas for participating in a robbery and murder at age 10 -- the youngest offender ever executed in the U.S.

1927 Fortune Ferguson Jr. was executed in Florida for raping an 8-year-old girl. He was 13 at the time of the crime, the youngest offender executed this century.

1944 George Junius Stinney Jr., 14, was electrocuted in South Carolina for the murder of a 11-year-old girl. Stinney -- at 5 feet, 1 inch, and 95 pounds -- was so small that authorities had trouble strapping him into the electric chair.

The 1940s were the peak decade for juvenile executions, with 53 persons executed for crimes committed before age 18.

1964 Last juvenile execution for 21 years, until 1985.

1985 Charles F. Rumbaugh was executed on Sept. 11 by lethal

injection in Texas for murder committed during a robbery at age 17 --

the first juvenile execution since 1964.

1986 James Terry Roach, a retarded adult, was electrocuted on Jan.

10 in South Carolina for rape and murder committed at age 17. At the

time of his execution, he was 25 but had an estimated mental age of 12.

1986 Jay Kelly Pinkerton was executed on May 15 in Texas by lethal

injection for a rape-murder he committed at age 17. KEY LEGAL

DECISIONS AFFECTING THE DEATH PENALTY

1972 *Furman v. Georgia*. The Supreme Court ruled that the death

penalty was unconstitutional as then applied but not necessarily a

violation of the Eighth Amendment's ban on cruel and unusual punishment.

Definition of "cruel and unusual," the court said, should be determined

by "evolving standards of decency which mark the progress of a maturing

society."

1976 *Gregg v. Georgia*. The Court ruled that death penalty laws are

constitutional as long as they give juries adequate discretion.

1976 *Jurek v. Texas*. In a companion case to *Gregg*, the Court said a

sentencing jury could "look to the age of the defendant" in deciding

between the death penalty and life imprisonment.

1978 *Lockett v. Ohio*. The Court ruled that sentencing juries and

judges must consider all relevant mitigating factors, including youth,

raised by the defendant.

1982 *Eddings v. Oklahoma*. Sidestepping the issue of whether the juvenile death penalty is constitutional, the Court decided the case on narrow procedural grounds. Writing for a 5-4 majority, Justice Powell noted that "youth is more than a chronological fact. It is a time and condition of life when a person may be most susceptible to influence and psychological damage."

1983 American Bar Association adopted a resolution opposing the death penalty for crimes committed before age 18.

June 29, 1988 *Thompson v. Oklahoma*. In a plurality decision, a sharply divided Court overturned Thompson's death sentence for murder committed at age 15, but came one vote short of declaring the death penalty unconstitutional for all crimes committed before age 16. Four justices held that the Eighth Amendment bars capital punishment for under-16 offenders. A fifth justice, Sandra Day O'Connor, agreed in a separate opinion that Thompson's death sentence should be overturned but said it was premature to set a minimum age for the death penalty. Only eight justices were on the Court when the case was heard.

June 30, 1988 The Supreme Court agreed to hear two cases in its 1988-89 term that challenge the constitutionality of the death penalty for juvenile crimes. The cases involve two men currently on death row;

one in Georgia for a murder committed at 17, the other in Missouri for a

murder committed at 16. The Court, including its newest member, Anthony

M. Kennedy, who did not participate in the Thompson ruling, will decide

the two cases next year.

July 19, 1988 There are approximately 30 people on death row who

committed their crimes before the age of 18.